

25STCV32859 25STCV32859

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C517%2C09%2F15%2F2026

Source SHA-256: 4c2851bd0f1967a7db6ae13e5d2160c510f25f3cce0fa91c79fd1f17e6afb4d3

Case Number: 25STCV32859 Hearing Date: September 15, 2026 Dept: 517

DEMURRER

Pending before the Court is the demurrer of Defendants Aykem, LLC, Gennady Mazin, and West LA LLC to the third and fourth causes of action in the First Amended Complaint of Plaintiff Valley 5 LLC. Both of those causes of action are for cancellation of a written instrument based on fraud. Aykem and Mazin are named Defendants in the third cause of action. West LA LLC is a named Defendant in the fourth cause of action. Valley 5 LLC asserts that all three Defendants participated in a fraud orchestrated by Defendant Alexander Mirsky.

The Court is sustaining with leave to amend the demurrer of Aykem and Mazin with respect to the third cause of action. There are no allegations in the First Amended Complaint of any fraudulent representation that Aykem and Mazin made to Valley 5 LLC. Nor are the

allegations in the First Amended Complaint sufficient to attribute Mirsky's purported fraud to Aykem and Mazin. In particular, there is no allegation that Mirsky was an agent or representative of Aykem and Mazin. By contrast, the Court is overruling the demurrer of West LA LLC with respect to the fourth cause of action. The First Amended Complaint alleges that Mirsky controls West LA LLC. The allegations of fraudulent representations that Mirsky made to Valley 5 LLC are sufficient to have those representations attributed to West LA LLC.

VALLEY 5 LLC'S MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS AND AYKEM LLC'S MOTIONS TO COMPEL FURTHER DISCOVERY RESPONSES

At the initial hearing on these motions, the Court indicated that it was inclined to deny Valley 5 LLC's motion for relief from its waiver of objections to Aykem LLC's requests for productions ("RFPs") and special interrogatories ("SROGs") and grant Aykem LLC's motions to compel further responses to the RFPs and SROGs. The Court is adhering to that tentative ruling. Valley 5 LLC's motion for relief from waiver of objections should be denied because Valley 5 LLC did not, after missing the deadline for responding to the RFPs and SROGs, provide responses that substantially comply with applicable requirements of the Code of Civil Procedure, which is necessary to obtain such relief. Thus, as requested in Aykem's motions, Valley 5 LLC must provide further responses to the RFPs and SROGs without any objections. Valley 5 LLC shall provide those further responses within 21 days of this order. The Court is, however, denying Aykem, LLC's request in its motions for an order imposing monetary sanctions against Valley 5 LLC in the form of attorney's fees that Aykem, LLC incurred in connection with the motions. In the Court's view, Valley 5 LLC was substantially justified in providing responses that contained objections even though the Court has concluded that relief from the waiver of the objections is unavailable. Thus, monetary sanctions are unwarranted.